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Judgment Sheet

IN THE LAHORE HIGH COURT

MULTAN BENCH MULTAN

JUDICIAL DEPARTMENT

W.P. No.1601 of 2025

Usama Zahoor

Versus

District & Sessions Judge, Multan, etc.

J U D G M E N T

Date of Hearing	22.05.2025
For the petitioner	Raja Naveed Azam, Advocate.
For the Federation of Pakistan	Mr. Ata-ul-Manaan Malik, Assistant Attorney General, Pakistan.
For the Government of the Punjab	Malik Masroor Haider Usman, Additional Advocate General, Punjab and Mr. Bashir Ahmad Buzdar, Assistant Advocate General, Punjab.

Raheel Kamran J:- This petition in terms of Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (**“the Constitution”**) calls in question order dated 06.05.2024 passed by the District & Sessions Judge, Multan, whereby application moved by petitioner for his appointment as Naib Qasid under Rule 17-A of the Punjab Civil Servants (Appointment & Conditions of Service) Rules, 1974 (**“the Rules”**) was rejected in view of the report of Recruitment & Promotion Committee dated 03.05.2024.

2. Facts of the case briefly are that father of the petitioner was employed as Naib Qasid in Sessions Courts, Multan, who was retired from service on medical ground w.e.f. 15.03.2024. Petitioner applied under Rule 17-A of the Rules on 06.04.2024. The Recruitment and Promotion Committee in its report dated 03.05.2024 concluded that the petitioner cannot claim benefit of

Rule 17-A of the Rules as such benefit was available to the family of a civil servant who died during service whereas petitioner's father was retired from service. On the basis of this report, the petitioner's application for appointment was rejected by way of order dated 06.05.2024.

3. Heard.

4. Petitioner claims his right to appointment under Rule 17-A of the Rules, which provided that if a civil servant died in service or was deemed unfit for further service, one of his/her unemployed children or widow/wife could be employed by the Appointing Authority against a vacant post. The Recruitment and Promotion Committee in its report opined that the petitioner cannot be appointed under Rule 17-A. Relevant excerpt of the report of the Recruitment and Promotion Committee is reproduced below: -

"5. Government of the Punjab, Finance Department, Lahore through Notification dated 07.12.2023, discontinued the benefit of Rule 17-A to the employees w.e.f. 21.11.2023, but said notification dated 21.11.2023 was revised through Notification dated 07.02.2024 by the Government of the Punjab, Finance Department, Lahore with the clarification that "Appointment of one child or widow in BS-1 to BS-11 (including the post of Patwari and Junior Clerk) on contract or regular basis as per provisions of Rule 17-A of the PCS (A&CS) Rules, 1974 for the families of the deceased civil servant who dies while in service w.e.f. 10.01.2024.

6. Meaning thereby that from 10.01.2024, this privilege is only available to the family of civil servant who got expired during the tenure of his service. In the matter in hand, official who is father of the applicant has got retired, therefore, the applicant cannot claim the benefit of Rule 17-A of the PCS (A&CS) Rules, 1974. In these circumstances, we are of the opinion that the applicant cannot be appointed as Naib Qasid on this score alone."

5. A careful perusal of the notifications dated 07.12.2023 and 07.02.2024 reveals a critical misinterpretation by the Committee. The Notification dated 07.12.2023 specifically addressed revision to the "Financial Assistance Package for the Family of a Civil Servant who dies while in service," and in that context, it noted the discontinuation of the employment benefit under Rule 17-A for

families of such deceased civil servants, effective 21.11.2023. Subsequently, the Notification dated 07.02.2024 revised this position, clarifying the re-establishment of the Rule 17-A employment benefit for families of deceased civil servants (in BS-1 to BS-11 including Patwari and Junior Clerk posts), with effect from 10.01.2024. Significantly, neither of these notifications, relied upon by the Recruitment and Promotion Committee, pertained to or discontinued the benefit of Rule 17-A for the families of civil servants who were declared incapacitated for further service. Rule 17-A distinctively covered both scenarios i.e. death in service or being deemed unfit for further service (incapacitation). The notifications cited in the report of Recruitment & Promotion Committee exclusively addressed the former (death in service), leaving the latter (incapacitation) unaffected. Therefore, the Committee's conclusion in its report dated 03.05.2024 that the petitioner whose father retired on medical grounds, could not claim the benefit of Rule 17-A on the basis of these notifications, reflects erroneous application of the stated legal instruments and rejection of the petitioner's application on that basis is legally untenable.

6. Be that as it may, the petitioner's misfortune persists, as Rule 17-A has since been entirely omitted by the Government of Punjab via notification dated 24.07.2024 and the Supreme Court of Pakistan in the case of General Post Office, Islamabad and others v. Muhammad Jalal (PLD 2024 SC 1276) has declared any rule, policy, or memorandum that allows for appointments of a deceased or permanently disabled civil servant's widow/widower, spouse, or child without open advertisement, competition, and merit to be discriminatory and unconstitutional. Relevant excerpt of the aforesaid judgment that was pronounced on 18.10.2024 is reproduced hereunder for ready reference: -

“- - - Policies, office memorandums, employment under the Package of the Prime Minister, the Financial Assistance Package, Rule 11-A of the Sindh Civil

Servants (Appointment, Promotion and Transfer) Rules, 1974, Rule 10 (4) of the Khyber Pakhtunkhwa Civil servants (Appointment, Promotion and Transfer) Rules, 1989, Rule 12 of the Balochistan Civil Servants (Appointment, Promotion and Transfer) Rules, 2009 or any other rule, policy, memorandum, etc. whereunder appointments without open advertisement, competition and merit, of the widow/widower, wife/husband or child of civil servants in different grades, who die during service or become permanently disabled/invalidated/incapacitated for further service and take retirement from service, are declared to be discriminatory and ultra vires Articles 3, 4, 5(2), 18, 25(1) and 27 of the Constitution. The prescribed Federal and Provincial authorities are directed to withdraw the same.”

It was, however, clarified that the aforesaid judgment shall not affect the appointments already made of the widow/widower, wife/husband or child of deceased or retired civil servants.

7. A Division Bench of this Court in the case titled as Province of Punjab etc. v. Syed Muhammad Ali Raza Shah (ICA No.2407 of 2025) while dealing with the legal question concerning the validity and effect of the omission of Rule 17-A of the Rules by way of Notification dated 24.07.2024, in the light of judgment in the case of General Post Office, Islamabad and others (supra), has held as follows in its judgment dated 10.04.2025: -

“12. We are not inclined to agree with the argument of learned Additional Advocate General that Rule 17-A of the Rules becomes non est from its insertion for the reason that neither malafide has been attributed to Rule 17-A of the Rules nor any violation of law has been agitated as a consequence to which Rule 17-A of the Rules becomes inoperative from the date of its omission (24.07.2024), hence the case of Shahid Pervaiz (supra) would not be attracted and applicable retrospectively over the past and closed chapter to the employees who had been appointed before the omission of Rule 17-A of the Rules. However, the case of General Post Office, Islamabad and others (supra) will be applicable retrospectively to the persons who had not been appointed till the omission of Rule 17-A of the Rules and their appointments are still in process.

13. The persons who have taken benefit of Rule 17-A of the Rules till its omission dated 24.07.2024, that process would deem to be a past and closed chapter. To further

classify and clarify the situation, the persons who could not get the benefit of Rule 17-A of the Rules (omitted on 24.07.2024) and were in process and no final and decisive step could had been taken effect till the pronouncement of venerated judgment passed in the case of General Post Office, Islamabad and others (supra) i.e. 18.10.2024, the judgment ibid would be applicable with retrospective effect.”

(Emphasis supplied by this Court.)

8. Although at the time when petitioner applied for his appointment i.e. on 06.04.2024, Rule 17-A of the Rules was still in force and his application was rejected on wrong premise, however, the said Rule had been omitted by way of Notification dated 24.07.2024. Subsequently, the Supreme Court of Pakistan also declared such rules in other provinces to be unconstitutional vide judgment dated 18.10.2024. Since the petitioner's application was not favorably decided, and no appointment order was issued in his favor before 18.10.2024, the date the judgment in General Post Office Islamabad and others case (supra) was rendered, his case does not fall within the exception. Therefore, following the aforementioned precedent, it is held that as the legal framework supporting the petitioner's claim ceased to exist and was further declared unconstitutional before he could have been appointed, the petitioner cannot be held entitled to be appointed under the omitted Rule 17-A of the Rules.

9. For the foregoing reasons, this petition is dismissed.

(RAHEEL KAMRAN)
JUDGE

Announced in the open Court on _____.

JUDGE

Approved for reporting.

JUDGE